

damages for any alleged breach. (Daniels Decl., ¶ 9.) Defendant's supplemental declaration filed August 4, 2026 further states that the signature page on Plaintiff's Exhibit A is identical to the signature page of an April 5, 2011 lease agreement between the parties, which Defendant located and attached as Exhibit 1. (Supp. Daniels Decl., ¶¶ 3–4.) At the time Defendant signed that page, it contained only the signature lines for herself and Plaintiff, with none of the handwritten language now appearing above the signatures on Exhibit A. (Supp. Daniels Decl., ¶ 5.) Defendant never authorized anyone to add that language after she signed, and states she would not have signed the document had those terms been present. (Supp. Daniels Decl., ¶¶ 8, 10.) Based on this evidence, Defendant contends that Exhibit A appears to have been altered after execution, with the handwritten terms Plaintiff relies on added to a signature page taken from an unrelated lease agreement.

In his reply, Plaintiff argues that the existence of the contract is proven by the parties' objective conduct. He emphasizes that Defendant executed a "multi-step transaction" to remove the Property from her trust and deed the property to Plaintiff in August 2025. He argues that the parties' course of performance is the most reliable evidence of the contract's existence and asks why Defendant would have deeded him the Property if no contract existed. He points to an August 27, 2025 letter from Defendant's counsel, in which counsel characterizes the Property and transfer as constituting "the entirety of your inheritance" and stating that Plaintiff would receive "no further distribution" from Defendant's trust, appearing to argue that if Defendant's lawyer characterized the Property as his inheritance, this is an admission that Defendant always intended to give the Property to him as part of his inheritance.

These arguments do not persuade the Court that the motion should be granted. In ruling on a motion for summary judgment, courts must "liberally construe the evidence in support of the party opposing summary judgment and resolve all doubts concerning the evidence in favor of that party." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037.) Only when the inferences are indisputable may the court decide the issues as a matter of law. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840.) Critically, "the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true." (*Ibid.*) Where, as here, the parties offer conflicting accounts of the significance and meaning of their past conduct, such disputes cannot be resolved on summary judgment.

Because the Court finds Defendant's evidence sufficient to raise a triable issue of fact whether a contract exists, summary judgment must be denied. Moreover, as this issue is dispositive, the Court need not consider the remaining arguments of the parties, including those concerning service of the summary judgment motion.

Disposition

Based on the foregoing, Plaintiff's motion for summary judgment is **denied**.

14. 9:00 AM CASE NUMBER: C25-02151
CASE NAME: JUSTIN MIDYETT VS. PACIFIC GAS AND ELECTRIC COMPANY
STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT
FILED BY: PACIFIC GAS AND ELECTRIC COMPANY
TENTATIVE RULING:

Before the Court is Defendant Pacific Gas and Electric Company Motion to Strike Plaintiff's First Amended Complaint. While entitled a motion to strike the entire FAC, Defendant PG&E only seeks to strike allegations in the Complaint relating to Plaintiffs' claims for punitive damages and allegations allegedly supporting that request.

Defendant's Motion is **granted** as outlined below.

Procedural Background

Plaintiff filed his complaint on July 29, 2025, alleging four causes of action: (1) disability discrimination; (2) retaliation; (3) harassment based on disability; and (4) waiting time penalty for nonpayment of wages. Defendant moved to strike Plaintiff's request for punitive damages. That motion was granted and Plaintiff was given leave to amend.

Plaintiff filed the First Amended Complaint on February 4, 2026. The FAC asserts the same four causes of action and seeks punitive damages. Defendant again seeks to strike the allegations related to the request for punitive damages.

Summary of Allegations

Plaintiff commenced working for PG&E as a Traffic Control Flagger on September 11, 2023. (¶ 9.) On June 15, 2024, he was struck by a vehicle while at work at a PG&E job site in Lafayette, California. (¶ 10.) He promptly reported his injury to his supervisor. (¶ 11.) His supervisor told him the injury would be a big problem since he was on probation. (*Ibid.*) He also instructed Plaintiff to obtain a police report regarding the incident. (¶ 12.)

About a week later, Plaintiff was limping at work. (¶ 13.) Toward the end of the day a supervisor asked about the police report. (*Ibid.*) Plaintiff said he was having difficulty getting it. (*Ibid.*) The supervisor said he thought Plaintiff wasn't going to make an issue about the injury – to which Plaintiff responded he wasn't going to say anything and returned to work. (*Ibid.*)

Plaintiff also alleges that he was told he was being deceitful when he intentionally under-reported his work hours. (¶ 14.) When he returned to work, he was told to wait for an ergonomic specialist and then to call the Emergency Nurse Hotline. (¶ 15.) When he asked his supervisor what he should say to the nurse, he was "curtly told to tell her how he was feeling." (*Ibid.*) After explaining his injuries he was put on Workers Compensation and was placed on modified duties. (¶ 16.)

Plaintiff then claims he was subject to a pattern of retaliation and mistreatment "including being marked as "No Call, No Show" despite being present; being forced to revise incident reports to benefit management; being placed under unreasonable restrictions post-injury; facing false rumors about dishonesty spread throughout his workplace." (¶ 17.) He told his supervisor that he felt he was being harassed and was told to report it to HR. (¶ 18.)

On August 20, 2024, Plaintiff awoke with pain in his injured foot, so he texted his supervisor. (¶ 19.) He did not receive a response. (*Ibid.*) He was terminated that same day. (*Ibid.*) Plaintiff indicated he

would pick up his check the next day but was unable to. (¶ 20.) As such, his supervisor mailed the check, which Plaintiff received on September 11, 2024. (¶ 21.)

Standard of Review

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. (“CCP”) § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 [“matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

Analysis

California Civil Code section 3294 sets forth the standard for allowing punitive damages to be maintained against a corporate employer:

An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation. (Civ. Code § 3294(b).)

The “law does not impute every employee’s malice to the corporation.” (*Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167.) “Instead, the punitive damage statute requires proof of malice among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (*Ibid.* quoting Cal. Code Civ. Proc. § 3294, subd. (d).) A ‘managing agent’ is an employee “who ‘exercise[s] substantial discretionary authority over decisions that ultimately determine *corporate policy*.’” (*Ibid.* italics in original.)

‘Corporate policy’ is “the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations.” (*Ibid.*) “A ‘managing agent’ is one with substantial authority over decisions that set these general principles and rules.” (*Id.* at 167-68.)

As noted by Defendants, in this Court’s earlier ruling on Defendant’s motion to strike, the Court found that the Complaint contained “several general allegations regarding actions taken by an unnamed ‘supervisor’ with relation to Plaintiff.” The Court went on to explain, however, that:

Nowhere in the complaint are there any factual allegations describing this supervisor’s duties or responsibilities. There is no indication that s/he exercised any control over corporate policy. There are no facts showing that s/he had any control over Plaintiff’s employment. In other words, none of the key facts outlined in [*Colucci v. T-Mobile USA, Inc.* (2020) 48 Cal.App.5th 442] are present in Plaintiff’s complaint.

The FAC now generally alleges that Plaintiff’s supervisor “was a director, officer, and/or managing agent of Defendant,” and that the that the alleged retaliation, mistreatment, and termination of

Plaintiff was “done at the behest of an officer, director, and/or managing agent.” (¶ 11, 17, 19.) There are additional general allegations that the actions taken were “authorized, ratified, and carried out by officers, directors, and/or managing agents of Defendants....” (See e.g. ¶¶ 22, 27, 32, 38.)

There are no **facts**, however, that describe any of these people, what their responsibilities were, or supporting the claim that they had ‘substantial authority over decisions that ultimately determine corporate policy.’ Here, Plaintiff merely copies the wording of section 3294 without providing any factual allegations to support the contention that the people were officers, directors, and/or managing agents of Defendant.

The mere allegation that an officer, director, or managing agent was aware of the conduct is not sufficient to allege punitive damages. “Pleading in the language of the statute is acceptable **provided that sufficient facts are pleaded to support the allegations**. [Citation omitted.] The terms themselves are conclusory, however. [Emphasis added.]” (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

Plaintiff fails to allege any facts regarding the person(s) who acted as managing agent(s) on behalf of Defendant, as well as any facts regarding whether said agent(s) acted with the requisite knowledge and in the requisite manner to support Defendant’s liability for punitive damages as a corporate employer. There are no allegations showing that any person of sufficient authority had any knowledge of the incidents outlined in the FAC. Plaintiff’s allegation that an ‘officer, director, and/or managing agent’ ‘authorized, ratified, or carried out’ the actions complaint of – without any additional **factual** allegations that would allow Defendants to determine who potentially opened it up to a claim for punitive damages is insufficient.

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (*Clauson v. Superior Court* (1998) 67 Cal. App. 4th 1253, 1255.) Conclusory allegations, devoid of any factual assertions, are insufficient. (See e.g. *Smith v. Sup. Ct.* (1992) 10 Cal. App. 4th 1033, 1042.)

Leave to Amend

“[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.) A trial court does not abuse its discretion in denying leave to amend when the moving party “merely stated in its opposition to [the] demurrer [or motion to strike] that ‘if the Court finds the operative complaint deficient, Plaintiff respectfully requests leave to amend....’” (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.)

Plaintiff has already been given leave to amend once. This time around, Plaintiff does not explain how he can amend to address the deficiencies. Instead, in his Opposition he merely states: “Plaintiff respectfully requests that Plaintiff be granted leave to amend.” Leave to amend is denied.

Conclusion

Defendant’s motion to strike is **granted** without leave to amend. If during discovery Plaintiff uncovers additional facts which would support a claim for punitive damages against Defendant corporation, Plaintiff may seek leave to amend at that time.